Brazoria County District Court

Cause No. 2024-CV-0048

Nathaniel Fleming, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	3-24-24
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant, for its answer to Plaintiff's Original Petition, respectfully shows the Court as follows.

Pursuant to Rule 92 of the Texas Rules of Civil Procedure, Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses. First, the collision at the intersection was caused in whole or in part by Plaintiff's own negligence, inclduing failure to yield the right-of-way, failure to keep a proper lookout, and entering the intersection against a traffic control device. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and bars recovery if that percentage exceeds fifty percent. Second, Defendant invokes the proportionate responsibility provisions of Chapter 33 as to any other person whose negligence contributed to the occurrence. Third, Plaintiff's claimed damages, including medical expenses, were not reasonable or necessary, and Defendant reserves its right to contest them under Section 41.0105 of the Texas Civil Practice and Remedies Code.